

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 HOUSE BILL 3984

By: Caldwell (Trey) of the
House

5
6 and

7 **Coleman** of the Senate

8
9
10 AS INTRODUCED

11 [workforce recruitment - Oklahoma Talent Attraction
12 and Relocation Act - Oklahoma Department of
13 Commerce - grant incentives - reporting - creating
14 the Oklahoma Talent Attraction and Relocation
15 Revolving Fund - establishing revolving fund nature
16 and characteristics - expenditure of funds -
17 procedures - effective date]

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20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 5160.1 of Title 74, unless there
23 is created a duplication in numbering, reads as follows:

1 A. This act shall be known and may be cited as the "Oklahoma
2 Talent Attraction and Relocation Act".

3 B. There is hereby created within the Oklahoma Department of
4 Commerce the "Oklahoma Talent Attraction and Relocation Program", to
5 be administered by the Department for the purpose of awarding grants
6 to support talent recruitment programs that incent households to
7 relocate to Oklahoma from outside the state.

8 C. As used in this section:

9 1. "Department" means the Oklahoma Department of Commerce;

10 2. "Eligible applicant" means:

11 a. a city, town, or county, or

12 b. a nonprofit corporation whose primary purpose includes
13 economic development, workforce development, or
14 community development;

15 3. "Household" means a group of one or more individuals who
16 dwell together within the same dwelling; and

17 4. "Household goal" means the total number of households that a
18 talent recruitment program seeks to successfully incent to relocate
19 or commit to relocate from outside this state to a municipality in
20 this state.

21 D. Subject to availability of funds, the Department may award
22 grants to eligible applicants for the administration of talent
23 recruitment programs and for costs associated with incenting
24 households to relocate from outside this state to establish

1 residency within this state. No more than Two Hundred Fifty
2 Thousand Dollars (\$250,000.00) in grant funds may be awarded to
3 support talent recruitment programming in a single municipality in a
4 single fiscal year.

5 E. To the extent funds are available, the Department shall
6 disburse fifty percent (50%) of the total grant amount upon
7 execution of a grant contract and fifty percent (50%) of the total
8 grant amount upon verification that the recipient has successfully
9 met at least one-half of the household goal stated in the approved
10 talent recruitment program plan. If the recipient fails to meet at
11 least one-half of its stated household goal, the remaining portion
12 of the grant shall not be disbursed.

13 F. To be considered for a grant, an eligible applicant shall
14 submit to the Department a written talent recruitment program plan
15 that includes:

16 1. The total estimated cost of the program and the estimated
17 costs associated with program design, administration, marketing, and
18 relocation incentive initiatives;

19 2. The household goal and the estimated total grant amount per
20 household;

21 3. The estimated state and local tax impact;

22 4. The estimated total economic impact; and
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1 5. Evidence that the proposed incentives do not duplicate
2 existing state or local relocation programs serving the same
3 households or geographic area.

4 G. The applicant shall demonstrate the ability to contribute at
5 least twenty percent (20%) of the total cost of the talent
6 recruitment program, which may include local investments and in-kind
7 donations. An applicant that has previously received a grant under
8 this section shall not be eligible for an additional grant unless
9 the applicant has met or exceeded the household goal stated in its
10 prior approved talent recruitment program plan.

11 H. If a recipient fails to meet its household goal by the end
12 of the program period, or if after notice and hearing the Department
13 determines grant funds were used for unauthorized purposes or
14 obtained through material misrepresentation of fact, the Department
15 may require repayment of all or part of the grant disbursed, plus
16 interest at the rate provided in Section 2357 of Title 68 of the
17 Oklahoma Statutes. The Department shall promulgate rules for
18 repayment procedures pursuant to the Administrative Procedures Act.

19 I. Each recipient of a grant under this section shall provide
20 semiannual reports to the Department that include:

- 21 1. The total number of household applications;
- 22 2. The total number of approved households;
- 23 3. The cost per approved household;

1 4. The annual incomes and occupations of approved households,
2 reported in aggregate form;

3 5. The economic impact of the talent recruitment program,
4 including state and local tax revenue and new consumer spending, to
5 the extent such information can be reasonably estimated;

6 6. Certification by a certified public accountant or other
7 independent third party acceptable to the Department verifying
8 household relocations through documentation including lease
9 agreements, utility service transfers, or employment records; and

10 7. If total grant funds exceed One Hundred Thousand Dollars
11 (\$100,000.00), a financial audit of program expenditures.

12 J. A household shall be eligible to receive incentives under a
13 talent recruitment program funded pursuant to this section if:

14 1. The household resides outside the State of Oklahoma at the
15 time the household applies for incentives;

16 2. The household has an individual household income of at least
17 Fifty-five Thousand Dollars (\$55,000.00); and

18 3. The household submits an application to a grant recipient
19 for incentives under the talent recruitment program.

20 K. Beginning two (2) years after the effective date of this
21 section, and every two (2) years thereafter, the Department shall
22 submit a report to the Governor, Speaker of the Oklahoma House of
23 Representatives, and President Pro Tempore of the Oklahoma State
24 Senate evaluating:

1 1. Total grants awarded versus verified household relocations;

2 2. Actual versus projected state and local tax revenue

3 generated;

4 3. Cost per verified household; and

5 4. Net economic impact.

6 L. The Oklahoma Department of Commerce shall promulgate rules
7 as necessary to implement and administer the provisions of this
8 section pursuant to the Administrative Procedures Act.

9 SECTION 2. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 5160.2 of Title 74, unless there
11 is created a duplication in numbering, reads as follows:

12 A. There is hereby created in the State Treasury a revolving
13 fund for the Oklahoma Department of Commerce to be designated the
14 "Oklahoma Talent Attraction and Relocation Revolving Fund".

15 B. The fund shall be a continuing fund, not subject to fiscal
16 year limitations, and shall consist of all monies appropriated by
17 the Legislature for the purposes of the Oklahoma Talent Attraction
18 and Relocation Program, any monies received by the Department from
19 federal funds, gifts, grants, donations, or any other source for the
20 purposes of the Program, and any repayments, refunds, or other
21 amounts received by the Department pursuant to Section 1 of this
22 act.

23 C. All monies accruing to the credit of the fund are hereby
24 appropriated and may be budgeted and expended by the Oklahoma

1 Department of Commerce for the purpose of implementing and
2 administering the Oklahoma Talent Attraction and Relocation Program,
3 including the award and administration of grants, program
4 evaluation, and related administrative costs.

5 D. Expenditures from the Oklahoma Talent Attraction and
6 Relocation Revolving Fund shall be made upon warrants issued by the
7 State Treasurer against claims filed as prescribed by law with the
8 Director of the Office of Management and Enterprise Services for
9 approval and payment.

10 SECTION 3. This act shall become effective November 1, 2026.

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12 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
13 03/04/2026 - DO PASS, As Amended and Coauthored.

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